Fitify.

Privacy Policy

Fitify Workouts s.r.o. (“Fitify”,"us", "we", or "our") operates the https://gofitify.com website, https://fitifyworkouts.com, and iOS and Android Apps (collectively the "Service").

This privacy policy has been compiled to better serve those who are concerned with how their Personally Identifiable Information (PII) is being used online. PII, as described in US privacy law and information security, is information that can be used on its own or with other information to identify, contact, or locate a single person, or to identify an individual in context. Please read our

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We use cookies to personalise content and ads, to provide social media features and to analyse our traffic. We also share information about your use of our site with our social media, advertising and analytics partners who may combine it with other information that you’ve provided to them or that they’ve collected from your use of their services.

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Allow all

Customize

- To provide customer support
- To gather analysis or valuable information so that we can improve our Service
- To monitor the usage of our Service
- To notify you about changes to our Service
- To detect, prevent and address technical issues
- To provide you with news, offers and general information about other goods, services and events which we offer that are similar to those that you have already purchased or enquired about unless you have opted not to receive such information.

Legal Basis for Processing Personal Data Under General Data Protection Regulation

If you are from the European Economic Area (EEA), Fitify Workouts s.r.o. legal basis for collecting and using the personal information described in this Privacy Policy depends on the Personal Data we collect and the specific context in which we collect it.

Fitify Workouts s.r.o. may process your Personal Data because:

- We need to perform a contract with you
- You have given us permission to do so
- The processing is in our legitimate interests and it's not overridden by your rights
- For payment processing purposes
- To comply with the law

Retention of Data

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that your data is treated securely and in accordance with this Privacy Policy and no transfer of your Personal Data will take place to an organisation or a country unless there are adequate controls and security of your data.

Data Disclosure

If Fitify is involved in a merge, acquisition or sale, your Data may be transferred. We would provide notice before your Personal Data is transferred.

Under certain circumstances, Fitify may be required to disclose your Personal Data if required to do so by law or in response to valid requests by public authorities (e.g. a court or a government agency).

Fitify may disclose your Personal Data in the good faith belief that such action is necessary to:

- comply with a legal obligation
- protect and defend the rights or property
- prevent or investigate possible misconduct in connection with the Service
- protect personal safety of users of the Service or the public
- protect against legal liability

Security Of Data

We are committed to protecting our user's personal data. We implement appropriate measures to help protect the security of your personal data; however, please note that no system is ever completely secure. We have implemented various policies including pseudonymisation,

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- You have the right to object to our processing of your Personal Data.
- You have the right to be provided with a copy of the information we have on you in a structured, machine-readable and commonly used format.
- You also have the right to withdraw your consent at any time where Fitify relied on your consent to process your personal information.
- You have the right to complain if you believe we are incorrectly handling your data.
- We may need to verify your identity before responding to such requests.
- You have the right to complain to a Data Protection Authority about our collection and use of your Personal Data. For more information, please contact your local data protection authority in the European Economic Area (EEA).

Service Providers

We may use 3rd party companies and individuals to improve our Service ("Service Providers"), to provide the Service on our behalf, to perform Service-related services or to assist us in analysing how our Service is used. These 3rd parties have access to your Personal Data only to perform these tasks on our behalf and are obligated not to disclose or use it for any other purpose.

Analytics

We may use third-party Service Providers to monitor and analyse the use of our Service.

- Google Analytics, Firebase Analytics, Smartlook, Facebook Analytics and Attribution Partners
- These services are analytics services that track and report website and app traffic. These services use the data collected to track and monitor the use of our Service. This data is shared with other services within their company. They may use the collected data to

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automatically recognizes your previous visit to the website, also you don't have to type same input over and over.

We also use temporary cookies, which stay on your device for a shorter time duration. These cookies are automatically deleted when you log off. One other reason to use cookies is to get statistics on the use of our Service and to evaluate them so we can optimize your experience and display information customized for you. Cookies are automatically removed after a predefined period. Most browsers accept cookies automatically.

You can disable cookies on your browser or choose to be notified when a new cookie is created. Please note that disabling cookies may mean that not all functionalities of the Service will remain available.

Third-Party Vendors

Fitify relies on several standard services and infrastructure in order to operate. We have ensured that they are all GDPR compliant themselves.

We rely on services such as: Cloud services, Transactional email providers, Mobile ad attribution partners, Ad platforms and so on. In order to provide our service.

The main vendors we use are:

Mailchimp
Service: Email
Location: USA
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Location: USA, Ireland
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Google Analytics, Firebase Analytics & Login
Service: Analytics
Location: USA
Privacy Policy

Facebook Login, Pixel, Analytics, Lookalikes
Service: Analytics, Authentication, Advertising
Location: USA
Privacy Policy

Facebook Advertising

We use Facebook's pixel and SDK to measure conversions. This service is provided by Facebook Ireland Limited, 4 Grand Canal Square, Dublin 2, Ireland. However, according to Facebook, the data collected is also transferred to the USA and other third countries.

This allows the service visitors to be tracked after they have been redirected to the service by clicking on a Facebook ad. This allows the effectiveness of Facebook Ads to be evaluated for statistical purposes and for future advertising measures to be optimized.

The collected data is anonymous for Fitify. We can't see the identity of the users. The data is stored and processed by Facebook, so Facebook can use the data for its own advertising purposes, according to the Facebook Data Usage Policy. This allows Facebook to allow ads to be served on pages within Facebook and outside of Facebook. This use of data can't be influenced by Fitify.

You will find further information on the protection of your privacy in the Facebook privacy website: https://www.facebook.com/about/privacy/

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not be used for marketing, advertising or use-based data mining, including third parties.

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Body Scanning Technology

If you use our body composition scan feature, we collect videos, images, and data (e.g., height, weight) and share them with Prism Labs Inc. ("Prism") to create 3D body scans and calculate metrics like body composition. Prism provides us with the scan and insights to display in our app. These data may also be used to improve our services, such as training the AI models.

Some data in these scans may qualify as "biometric identifiers" under certain laws, although they are not used for reidentification. Prism's handling of your data is governed by its own privacy policy, separate from this one.

Data Breach

When a data breach occurs, we will notify you via email within 72 hours.

We also agree to the Individual Redress Principle which requires that individuals have the right to legally pursue enforceable rights against data collectors and processors who fail to adhere to the law. This principle requires not only that individuals have enforceable rights against data users, but also that individuals have recourse to courts or government agencies to investigate and/or prosecute non-compliance by data processors.

Payments

We provide paid products and services within the Service. In that case, we use third-party services for payment processing. We do not collect your payment card details. That information is provided directly to our third-party payment processors. These payment processors comply to the

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Children Online Privacy Protection

When it comes to the collection of personal information from children under the age of 16 years old, the Children's Online Privacy Protection Act (COPPA) puts parents in control. The Federal Trade Commission, United States consumer protection agency, enforces the COPPA Rule, which spells out what operators of websites and online services must do to protect children's privacy and safety online.

We do not specifically market to children under the age of 16 years old. And use of our app is not supported by our user interface.

California Online Privacy Protection Act

CalOPPA is the first state law in the nation to require commercial websites and online services to post a privacy policy. The law's reach stretches well beyond California to require any person or company in the United States (and conceivably the world) that operates websites collecting Personally Identifiable Information from California consumers to post a conspicuous privacy policy on its website stating exactly the information being collected and those individuals or companies with whom it is being shared. – See more at: http://consumercal.org/california-online-privacy-protection-act-caloppa/#sthash.0FdRbT51.dpuf

According to CalOPPA, we agree to the following:

- Users can visit our site anonymously.
- Once this privacy policy is created, we will add a link to it on our home page or as a minimum, on the first significant page after entering our website.

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- Market to our mailing list or continue to send emails to our clients after the original transaction has occurred.

To be in accordance with CANSPAM, we agree to the following:

- Not use false or misleading subjects or email addresses.
- Identify the message as an advertisement in some reasonable way.
- Include the physical address of our business or site headquarters.
- Monitor third-party email marketing services for compliance, if one is used.
- Honor opt-out/unsubscribe requests quickly.
- Allow users to unsubscribe by following the instructions at the bottom of each email.

Contacting Us

If there are any questions regarding this privacy policy, you may contact us using the information below.

Fitify Workouts s.r.o.
GoFitify.com
support@gofitify.com
Na Perštýně 342/1
110 00 Prague, Czechia

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Facebook

X

Spotify

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